

OFFICE OF THE SECRETARY

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Sacramento, CA 94283-0001



April 14, 2022

The Honorable Arthur Harrison
Judge of the Superior Court
County of San Bernardino
247 West Third Street
San Bernardino, CA 92415

Re: Clarence Roberts Jr.
CDCR No: F20718
Case No: FSB027969
Date of Sentence: February 24, 2006

Dear Honorable Arthur Harrison:

The purpose of this letter is to provide the court with the authority to resentence inmate Clarence Roberts Jr., F20718 pursuant to Penal Code (PC) Section 1170.03 Subdivision (a)(1), based upon his exceptional conduct while incarcerated. PC Section 1170.03, Subdivision (a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court consider and possibly recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules and regulations, as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but many have also demonstrated a commitment to their rehabilitation through voluntary participation in various self-help programs, vocational and educational programs, and have displayed a dedicated participation in programs such as Prison Industry Authority, Division of Rehabilitative Programs, and the Integrated Substance Use Disorder Treatment program, to name a few.

Only the Warden of the institution where the inmate is incarcerated can make a recommendation to the Secretary for consideration for potential resentencing referral. Once a recommendation is received, the inmate's case factors are compiled and then thoroughly reviewed by the Director of Adult Institutions. Only a select few cases are approved by the Secretary and referred to the court.

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Inmate Roberts has received one Rules Violation Report however, he has remained disciplinary free since May 2011. Inmate Roberts is currently assigned to Criminal and Gang members Anonymous groups. He was recently assigned to the Prison Industries Authority Food Packaging program but was unassigned due to medical impairments. Inmate Roberts has received certificates and laudatory chronos from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

Having reviewed the enclosed documentation it appears that inmate Roberts' sentence warrants the attention of the court. Pursuant to PC Section 1170.03, Subdivision (a)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in blue ink, appearing to read "K. Allison".

KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Michael A. Sachs, Presiding Judge
San Bernardino County District Attorney's Office
San Bernardino County Public Defender's Office